

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1405

BY FINANCE COMMITTEE

AN ACT

RELATING TO THE APPROPRIATION TO THE SOIL AND WATER CONSERVATION COMMISSION; REDUCING THE APPROPRIATION TO THE DEPARTMENT OF AGRICULTURE FOR THE SOIL AND WATER CONSERVATION COMMISSION FOR FISCAL YEAR 2027; APPROPRIATING ADDITIONAL MONEYS TO THE DEPARTMENT OF WATER RESOURCES FOR THE SOIL AND WATER CONSERVATION COMMISSION FOR FISCAL YEAR 2027; PROVIDING REQUIREMENTS FOR TRUSTEE AND BENEFIT PAYMENTS DISTRIBUTION FOR THE DEPARTMENT OF WATER RESOURCES FOR THE SOIL AND WATER CONSERVATION COMMISSION; PROVIDING FOR CONDITIONS, LIMITATIONS, AND RESTRICTIONS; APPROPRIATING ADDITIONAL MONEYS TO THE DEPARTMENT OF AGRICULTURE FOR THE SOIL AND WATER CONSERVATION COMMISSION FOR FISCAL YEAR 2026; AND DECLARING AN EMERGENCY AND PROVIDING EFFECTIVE DATES.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. Notwithstanding any other provision of law to the contrary, the appropriation made to the Department of Agriculture for the Soil and Water Conservation Commission is hereby reduced by the following amounts from the designated expense classes from the listed funds for the period July 1, 2026, through June 30, 2027:

	FOR PERSONNEL COSTS	FOR OPERATING EXPENDITURES	FOR CAPITAL OUTLAY	FOR TRUSTEE AND BENEFIT PAYMENTS	TOTAL
FROM:					
General					
Fund	\$1,517,000	\$212,800		\$1,805,200	\$3,535,000
Administration and Accounting Services					
Fund		30,000			30,000
Resource Conservation and Rangeland Development					
Fund	221,000	166,500	\$200		387,700
Clean Water Revolving Loan (SCC)					
Fund	<u>0</u>	<u>30,000</u>	<u>0</u>	<u>0</u>	<u>30,000</u>
TOTAL	\$1,738,000	\$439,300	\$200	\$1,805,200	\$3,982,700

SECTION 2. In addition to any other appropriation provided by law, there is hereby appropriated to the Department of Water Resources for the Soil and Water Conservation Commission the following amounts to be expended according to the designated expense classes from the listed funds for the period July 1, 2026, through June 30, 2027:

	FOR PERSONNEL COSTS	FOR OPERATING EXPENDITURES	FOR CAPITAL OUTLAY	FOR TRUSTEE AND BENEFIT PAYMENTS	TOTAL
FROM:					
General					
Fund	\$1,517,000	\$212,800		\$2,105,200	\$3,835,000
Miscellaneous Revenue					
Fund		20,000		67,100	87,100
Administration and Accounting Services					
Fund		30,000			30,000
Resource Conservation and Rangeland Development					
Fund	221,000	166,500	\$200		387,700
Clean Water Revolving Loan (SCC)					
Fund	<u>0</u>	<u>30,000</u>	<u>0</u>	<u>0</u>	<u>30,000</u>
TOTAL	\$1,738,000	\$459,300	\$200	\$2,172,300	\$4,369,800

SECTION 3. TRUSTEE AND BENEFIT PAYMENTS DISTRIBUTION. Of the amount appropriated to the Department of Water Resources for the Soil and Water Conservation Commission in Section 2 of this act for trustee and benefit payments, \$300,000 shall be distributed equally among the 50 soil and water conservation districts in addition to the amounts authorized pursuant to Section 22-2727, Idaho Code.

SECTION 4. CONDITIONS, LIMITATIONS, AND RESTRICTIONS. Appropriations made pursuant to this act are subject to the conditions, limitations, and restrictions specified in this act.

SECTION 5. In addition to the appropriation made in Section 3, Chapter 136, Laws of 2025, and any other appropriation provided for by law, there is hereby appropriated to the Department of Agriculture for the Soil and Water Conservation Commission \$12,900 from the Miscellaneous Revenue Fund to be expended for trustee and benefit payments for the period July 1, 2025, through June 30, 2026, to support the Conservation Reserve Enhancement Program.

SECTION 6. An emergency existing therefor, which emergency is hereby declared to exist, Section 5 of this act shall be in full force and effect on and after passage and approval, and Sections 1 through 4 of this act shall be in full force and effect on and after July 1, 2026.